

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125R0013

- ☒ **ORIGINAL**
☐ **ADDENDUM (attach copy of original J&A for add-ons or revisions)**

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies/services on other than a full and open competition basis.
3. The supplies/services required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. VALUE	AMSC
SHAFT, SHOULDERED	3040-004022543	42 EA	\$ [REDACTED]	1/C

Identify end item, weapon system, or class of item: ENGINE, AIRCRAFT, T400

ESTIMATED BASE VALUE: [REDACTED]

ESTIMATED TOTAL VALUE (BASE + OPTIONS): [REDACTED]

MAXIMUM CONTRACT VALUE: [REDACTED]

4. The statutory authority permitting other than full and open competition is:
☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.
5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
 - a. CANADIAN COMMERCIAL CORP 98247 P/N 3018158
 - b. PRATT & WHITNEY CANADA CORP 00198 P/N 3018158
 - i. CANADIAN COMMERCIAL CORP and PRATT & WHITNEY CANADA CORP are uniquely qualified because they are the only known source with the data or rights necessary to manufacture this item.

The use of the authority cited below:

- ☒ AMC 1. Suitable for competitive acquisition for the second or subsequent time.

The use of the authority cited is based on:

☒ *AMSC C*. This part requires engineering source approval by the design control activity in order to maintain the quality of the part. Existing unique design capability, engineering skills, and manufacturing knowledge by the qualified source(s) require acquisition of the part from the approved source(s). The approved source(s) retain data rights, manufacturing knowledge, or technical data that are not economically available to the Government, and the data or knowledge is essential to maintaining the quality of the part. An alternate source must qualify in accordance with the design control activity's procedures, as approved by the cognizant Government engineering activity. The qualification procedures must be approved by the Government engineering activity having

Controlled by: DLA Land and Maritime
Controlled by: [FLSCD]
CUI Category: PROCURE/SSI
Distribution/Dissemination Control: FED ONLY
POC: [REDACTED]

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jurisdiction over the part in the intended application. If one source is approved, AMCs 3, 4, or 5 are valid. If at least two sources are approved or if data is adequate for an alternate source to qualify in accordance with the design control activity's procedures, AMCs 1 or 2 are valid.

Product specialist, Brian McNamara, certified the technical data on 09/25/2024:

This item is an AMC/AMSC is 1/C. DLA does not possess adequate data, lacks rights to data, and/or has no record of an alternate Design Control Activity approved source. The data presently available reflects the minimum needs of the Government. There is no outstanding DLA Form 339 request for additional sources.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:

[X] The acquisition will be synopsisized for 15 days prior to solicitations opening on DIBBS for 30 days.

7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.

- a. A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. Cost or pricing data in accordance with FAR 15.403-4 will be requested if the offeror's proposal exceeds the \$2M threshold for obtaining cost data, however, it is anticipated that this procurement will not exceed that threshold. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.

8. Market Research/Efforts to Obtain Competition:

Smart Number (PIIN)	Source Type	CAGE Code	Vendor Name	Quantity	Unit	Net Price	Curr	Per	Award Date	Incoterms	Prc Reas	SAP PO No.	Surplus Material
SPE4A023P1674	B	5V361	BROWN HELICOPTER, INC.	2	EA	\$17,890.00	USD	1	6/23/2023	D	BG	8509973485	Y
SPE7L219F0053	A	98247	CANADIAN COMMERCIAL CORP	21	EA	\$16,584.00	USD	1	5/14/2019	E	BG	8506525358	N
SPE7L219F0018	A	98247	CANADIAN COMMERCIAL CORP	13	EA	\$15,976.80	USD	1	1/17/2019	E	BG	8506189142	N
SPE7L219F0011P00001	A	98247	CANADIAN COMMERCIAL CORP	9	EA	\$15,976.80	USD	1	12/7/2018	E	BG	8506113714	N
SPE7L319P0597	A	22819	BOEING DISTRIBUTION, INC.	10	EA	\$21,968.10	USD	1	10/23/2018	E	BB	8505993605	N
SPRPA114G001Z022402	A	98247	CANADIAN COMMERCIAL CORP	10	EA	\$14,914.80	USD	1	12/7/2016	E	BG	8503900171	N
SPRPA114G001ZU332	A	98247	CANADIAN COMMERCIAL CORP	5	EA	\$14,914.80	USD	1	8/24/2016		BI	8503557802	N
SPE7L316M6607	B	5V361	BROWN HELICOPTER, INC.	6	EA	\$9,890.00	USD	1	7/12/2016	E	BG	8503376869	N
SPE7L316M6092	B	5V361	BROWN HELICOPTER, INC.	9	EA	\$9,839.00	USD	1	6/20/2016	E	BG	8503314242	N
SPE7L515M0115	B	5V361	BROWN HELICOPTER, INC.	2	EA	\$9,890.00	USD	1	1/2/2015	E	BB	8501450924	Y

The PO history shows multiple past awards. The most recent award was to Brown Helicopter on 6/23/2023 for a price of \$17,890.00.

A source sought was posted on 10/24/2024 and was posted for 5 business days. One response was received from BPHE (9SWS7) and the SARS package forwarded.

Market Survey [10 U.S.C. 3204(e)(2)(D)]:

A market survey was conducted on 9/24/2024 and a follow up email was sent on 10/24/2024.

Total number of vendors contacted: 3

CANADIAN COMMERCIAL CORP (98247)

BROWN HELICOPTER, INC (5V361)

PRATT & WHITNEY CANADA CORP (00198)

Names of vendors contacted and responding: 2

CANADIAN COMMERCIAL CORP (98247)

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(November 2021)

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BROWN HELICOPTER, INC (5V361)

Techniques used to conduct survey: Email

Types of information requested: Business size, manufacturer or dealer, commerciality, price breaks, minimum order quantity, and estimated delivery

Summary of information received: BROWN HELICOPTER CORP (00198) stated that “We do not have the requested material in stock. [REDACTED].” PRATT & WHITNEY CANADA CORP (00198) is a subcontractor to CANADIAN COMMERCIAL CORP (98247) (a Government of Canada entity). CANADIAN COMMERCIAL CORP (98247) stated, “Unfortunately, P&WC will not fill out the market survey, this is against our policy. Our quote should suffice on this quote request.”

Information received regarding the commerciality of the item(s): No market surveys were returned. No results were returned on GSA or CID database. Market research did not yield any readily available published catalog price lists, schedules, or other forms of commercial pricing that are regularly maintained and updated by a manufacturer or vendor, and that are available to the general public for inspection. There is no evidence of sale prices at which sales were made to a significant number of buyers constituting the general public. Therefore, the Contracting Officer determines this item to be non-commercial, thus FAR 15 procedures will be utilized.

9. Additional facts supporting other than full and open competition are:

[x] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is: CANADIAN COMMERCIAL CORP (98247)

11. The following actions are being taken to identify additional sources:

[X] Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items

[X] Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items

12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification. No previous J&A was found.

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I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

TUBBS.JOHN.
D.1076026684

Digitally signed by
TUBBS.JOHN.D.1076026684
Date: 2025.02.26 11:52:44
-05'00'

Contracting Officer

Date

APPROVAL/CERTIFICATION

I have reviewed and approve this justification:

WIEBUSCH.JAM
IE.1251897324

Digitally signed by
WIEBUSCH.JAMIE.1251897324
Date: 2025.03.06 15:54:07 -05'00'

Competition Advocate Signature

Date

APPROVAL REQUIREMENTS

☐ Up to \$750,000

Contracting Officer

☒ \$750,000 to \$15,000,000

Competition Advocate

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Attachment(s):

1. Technical Data Supporting- Limited Sources